

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CANADA

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Canada's most famous environmental fight didn't turn on a permit. It turned on a road, a rainforest, and a movement that wouldn't step aside. In the summer of 1993, after the British Columbia government opened most of **Clayoquot Sound** — a vast tract of ancient rainforest on Vancouver Island, in Nuu-chah-nulth territory — to clearcut logging by the timber giant MacMillan Bloedel, some twelve thousand people came to the Kennedy River Bridge and stood in the road. Over that summer **856 people were arrested**, the largest act of civil disobedience in Canadian history until Fairy Creek in 2021. But the blockade was only half of it. Working in support of the Nuu-chah-nulth, organizers also went after the company where it was weakest — its **customers** — and within two years MacMillan Bloedel had lost hundreds of millions of dollars in contracts, which dragged the company and the government to the table. The clearcutting of the intact valleys stopped, the Sound became a UNESCO Biosphere Reserve, and Indigenous stewardship took root. A movement with almost no money changed the fate of a rainforest — by putting people in the road *and* pressure on the market.

Clayoquot teaches two things about winning in Canada. First, the pattern: no single silver bullet, but every lever — the law, the impact assessment, the market, the media, and the mobilization — kept up until the cost of the project outgrew the will to build it. Second, something distinctly Canadian that has only grown stronger since 1993: **the rights of Indigenous peoples**. Clayoquot was fought alongside the Nuu-chah-nulth, and it built on Indigenous-led wins just before it — the 1984 injunction the Nuu-chah-nulth won to stop logging on **Meares Island** pending their land claim, and the 1985 Haida stand at **Athlii Gwaii** that led to the protection of Gwaii Haanas. In the decades since, the courts have made the **Crown's duty to consult and accommodate** Indigenous peoples a constitutional obligation with real teeth — one that has **quashed the approval of major pipelines**. Where a project affects Indigenous rights, the strongest lever in the whole fight is often the one the Constitution itself provides.

Be clear-eyed, though. The duty to consult is **not a veto** — the Crown must consult in good faith but need not reach agreement, and projects like Trans Mountain went ahead after consultation the courts eventually deemed adequate. Federal and provincial **jurisdictions tangle**, and the courts have trimmed federal impact-assessment powers as overreach into provincial turf. **Provinces usually champion resource projects** — mines, forestry, oil and gas — and the same Crown that must consult is often the project's biggest booster. Civil disobedience brings **injunctions, arrests, and contempt charges**, as Clayoquot, Fairy Creek, and the Wet'suwet'en pipeline conflict all showed. And governments increasingly move to **fast-track** resource and energy projects. This guide shows you how to win anyway — and where a clean, permanent stop isn't realistic, how to win the delay, the conditions, the exposure, and the worn-down proponent that a hard fight often really comes down to.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. In Canada a major project usually needs **provincial** environmental assessment and permits; it may *also* need **federal** impact assessment; if it affects Indigenous rights, the Crown owes a **duty to consult and**

accommodate; and it always needs public acceptance and money. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project affects Indigenous or treaty rights, the most powerful lever belongs to Indigenous nations** — the duty to consult, which has quashed major approvals. A non-Indigenous community wins by *supporting* that leadership, not supplanting it.
- **If the impact assessment is flawed, and you can reach the courts, judicial review genuinely bites** — a decision that ignored the law or the evidence can be quashed and sent back.
- **If it's a purely provincial project the province wants built, it's harder** — you fight on provincial ground, plus the market, the media, and the movement. Clayoquot was exactly this fight, and the *market* lever is what won it.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the assessment comment periods, the duty to consult, participant funding — and **run every front at once**: the documents, the assessment fight, the courts, the market, the movement, the media. That's how Clayoquot was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The province or territory is the primary decision-maker for most projects — mines, forestry, dams, most industrial and land-use developments. It runs the environmental assessment, issues the permits and tenures, and carries its own **duty to consult** Indigenous nations. Provincial law is where most projects live or die. Sitting alongside it, for larger "designated projects" with effects in federal jurisdiction, is the **federal Impact Assessment Act**, run by the **Impact Assessment Agency of Canada** — though the Supreme Court in 2023 narrowed how far that federal power reaches, so many projects are assessed provincially only. And running through both levels is the constitutional duty the **Crown** owes Indigenous peoples.

How a Project Moves — and Where You Jump In

Screening — which assessment applies? A project may face provincial assessment, federal assessment, or both, and it starts with an early-planning phase. *Your opening*: pushing for a full assessment (and, federally, the "designated project" listing) rather than a project slipping through with none.

The assessment and its comment periods. Whether provincial or federal, the assessment runs with public comment periods, expert evidence, and — federally — **participant funding** to help you take part. *Your opening*: the honesty of the assessment and whether Indigenous rights and the public were genuinely engaged. This is where you build the record.

The decision. The province or the federal minister/Cabinet approves, refuses, or conditions the project. *Your opening*: a decision built on inadequate consultation or a flawed assessment can be challenged in court.

Permits and construction. *Your opening*: breaches of conditions, and permits still outstanding.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and stock-exchange records set the reputational and market exposure. **What it still needs** — the assessment not done, the approval not granted or under challenge, the financing not closed: whatever's missing is the soft spot. **Who's paying and who buys** — banks and insurers with climate commitments, and (as at Clayoquot) *customers* whose contracts a market campaign can put at risk.

Who's Supposed to Be Watching

Each is an ally or an arena. The **Impact Assessment Agency** and the **provincial assessment office** run the process and can be pressed to enforce it. The **Federal Court and Federal Court of Appeal** review federal decisions; the **provincial superior courts** review provincial ones — and they really do quash unlawful approvals. Federal and provincial **auditors general and information/privacy commissioners** take complaints about process and records. And Canada's **strong environmental movement, its public-interest law charities, and a free press** are the forces that reach furthest — because Clayoquot was won in the market and the media as much as in the woods.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether Indigenous rights are engaged, whether the assessment or consultation is genuinely flawed, and how set the province is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Comment in the assessment (+ participant funding)	15–35%	during review	low	On record; conditions or a redo
Judicial review of an approval	30–55%	1–3 yr	mod	Approval quashed; sent back
Duty-to-consult challenge (Indigenous-led)	35–60%	1–3 yr	mod	Approval quashed; re-consultation
Market / customer / financier pressure	25–50%	months–yr	low	Contracts, funding, or cover lost
Mass movement + media	30–55%	1–4 yr	low–mod	Political cost; project reconsidered
Everything together (Indigenous rights, public watching)	45–65%	1–4 yr	mod	Stopped, quashed, delayed, changed
Everything together (province-backed, no rights trigger)	20–45%	1–4 yr	mod	Delayed, conditioned, exposed

The lever that moves the needle most is the **duty to consult** (where Indigenous rights are engaged) — it has quashed major approvals outright — reinforced by **judicial review**, the **market**, and **public opinion**. Clayoquot shows the ceiling (a rainforest saved by the road and the market together); the honest floor is a province-backed project with a clean process and no rights trigger, where a win often looks like delay,

conditions, and exposure.

*On cost: commenting, documenting, and organizing are cheap; federal assessments offer participant funding; and public-interest law charities like **Ecojustice** and the **Canadian Environmental Law Association** take environmental cases for free or low cost. The courthouse door is genuinely reachable.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this approval, this consultation, this flaw — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers and customers. Market and customer exposure is a real lever in Canada.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over Indigenous and treaty territory, protected areas, species habitat, and water. **Indigenous rights are the strongest lever**, so understanding whose territory this is, and engaging respectfully, comes first.
- 3. What stage is it at, and what assessment applies?** Provincial, federal, or both? Is the early-planning phase or a comment period open? Is the decision made? These openings are time-bound.
- 4. What does it still need that it lacks?** An assessment not done, an approval not granted or under challenge, consultation not adequately carried out, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already stands with you?** The affected First Nations, Métis, or Inuit; neighbours; local groups; Ecojustice and the environmental movement. You're rarely alone.

What this looks like in real life. A community learns a mine is planned in the territory of a First Nation, threatening a salmon river. The five questions yield: a mining company, publicly traded, behind it; a site in Indigenous territory and on a fish-bearing river (the duty-to-consult lever, and species/water); a provincial assessment underway, perhaps with a federal trigger; a project still needing approvals and financing; and a coalition of the First Nation (whose rights lead), local groups, and Ecojustice. That's a winnable fight — pressure on every front, led where the rights are.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the impact assessment and its supporting studies, the approval and conditions, the permits, and the **consultation record** with affected Indigenous nations (often the decisive document). Access-to-information laws (federal and provincial) force out what isn't public. Then read the assessment hard for flaws — an understated impact, an ignored alternative, cumulative effects skipped, a consultation that was thin or one-sided.

Layer two: the ground truth. Dated, located photographs and video of the site, the river, the forest, the species — baseline images before any damage most of all — and the testimony of affected neighbours and, where they choose to share it, Indigenous knowledge holders.

Layer three: the map of rights and protections. Lay the project over Indigenous and treaty territory, protected areas, species habitat, and water, so each lever is visible. Walking in with the assessment, the consultation record, and that map is what makes the agency, the courts, and the press take you seriously.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The impact assessment, the approval and conditions, the permits, the consultation record** — from the Impact Assessment Agency or the provincial assessment office; force out the rest with access-to-information requests (8A).
- **Tenures, licences, and land-use documents** — from the provincial ministry.
- **Ownership, financing, and customers** — company and stock-exchange records, and lender and buyer information.
- **The rights-and-protections map** — Indigenous and treaty territory, protected areas, species habitat, and water, laid over the site.
- **Dated site evidence and testimony** — photographs marked with date and place, and neighbours' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Clayoquot showed that a movement with no money can beat a corporate giant. Build your coalition in four moves.

Start with a tight core. The families most affected, the people who know the land and water, a few tireless organizers, and respected local figures.

Widen the circle. Pull in the surrounding community, the local groups, the next town. Hold meetings where people can see the evidence — the map of the project over the river and the territory — so the community speaks with one voice.

Support Indigenous leadership — first and throughout. Where a project affects Indigenous or treaty rights, the most powerful rights in the fight belong to the affected nation. Build the campaign around **supporting** that leadership, at their direction, and be mindful that a nation may have both elected and hereditary leadership — follow their lead on who speaks and how, never presuming to speak for them.

Bring in the allies and experts — early. **Ecojustice** (ecojustice.ca) is Canada's largest environmental-law charity and litigates public-interest cases; the **Canadian Environmental Law Association, West Coast Environmental Law**, and university law clinics also help. Scientists and the national movement are within reach. Bring them in as partners and hand them your documents.

Build to last. These fights run for years. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial and emotional toll — and, if direct action is contemplated, get legal advice first, because injunctions, arrests, and contempt charges are real (Clayoquot, Fairy Creek, Wet'suwet'en).

STEP 4: LEGAL CHALLENGES, IMPACT ASSESSMENT & THE DUTY TO CONSULT

Law is one of Canada's sharpest levers, because the courts genuinely enforce the limits on power — and because the Constitution gives Indigenous peoples a right with real force.

The Duty to Consult and Accommodate

This is Canada's most powerful lever, and it belongs to Indigenous nations. Where a decision may adversely affect the rights of First Nations, Métis, or Inuit, the **Crown — federal or provincial — has a constitutional duty to consult and, where appropriate, accommodate**, flowing from **section 35** of the Constitution and the **Honour of the Crown** (the *Haida Nation* line of cases). It is real and enforceable: inadequate consultation has led courts to **quash major approvals outright**, as the Federal Court of Appeal did to the first Trans Mountain pipeline approval. It is **not a veto** — the Crown need not reach agreement — but it is a genuine obligation the courts police, and **UNDRIP**, adopted federally through **Bill C-15** (and in BC through its own Declaration Act), is pushing Canadian law toward **free, prior, and informed consent**. A non-Indigenous community's job is to understand this early and build its campaign in support of the affected nation's leadership.

Impact Assessment — Federal and Provincial

Most projects face **provincial** environmental assessment; larger "designated projects" with effects in federal jurisdiction also face **federal** impact assessment under the Impact Assessment Act, run by the Impact Assessment Agency of Canada — with public comment, expert evidence, and **participant funding** to help you take part. Use the comment periods to put your evidence and the assessment's flaws on the record, because that record is what a court reviews. (Note that the 2023 Supreme Court reference narrowed the federal power, so for many projects the provincial assessment is the main event.)

Judicial Review

If an approval is granted on inadequate consultation or a flawed assessment, parties can seek **judicial review** — of a federal decision in the **Federal Court / Federal Court of Appeal**, of a provincial decision in the **provincial superior court**. The deadlines are short (30 days for federal judicial review), and the court asks whether the decision was lawful and reasonable. A win **quashes the approval and sends it back** — a real remedy, as Trans Mountain showed. Get public-interest counsel (Ecojustice, CELA) early.

The Honest Limits

Straight talk: the duty to consult is not a veto, and projects proceed after "adequate" consultation; federal and provincial powers tangle and the federal assessment reach has been trimmed; provinces champion resource projects and are often the proponent's ally; and governments increasingly fast-track. So use the strong tools — the duty to consult, the assessment, judicial review — but pair them with the market, the movement, and the media, be ready for a long fight, and count a quashed or conditioned approval, delay, and exposure as wins alongside a clean stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A thin consultation record becomes a constitutional flaw. *"The Crown's duty to consult and accommodate the affected nation was not met — so the approval is unlawful and must be quashed."* (Led by, or in full support of, the affected nation.)

A gap in the assessment becomes a legal flaw. *"The assessment ignored the cumulative impact on the salmon river and the species the law requires it to protect."*

A market exposure becomes leverage. *"This project's customers, banks, and insurers should know it faces active legal challenge and Indigenous opposition."* (The Clayoquot move.)

The harm becomes a public story. *"An ancient forest, a salmon river, and the territory a nation has cared for since time immemorial — for a project we were never truly asked about."*

Match it to the venue: the consultation failure and the assessment flaws to the courts; the market case to the customers and financiers; the story to the press and the public.

STEP 5: MEDIA STRATEGY

In Canada, publicity and the market are power — Clayoquot was won as much in the marketplace and the media as in the woods. A free press, an engaged public, and a strong movement mean the media front is central, and it protects campaigners too.

Lead with people and place, not procedure. Not "the consultation was procedurally inadequate" but "the ancient forest, the salmon river, and the territory a nation has stewarded for millennia are to be destroyed for a project no one truly asked about." Use your strongest material: dated photographs, the map, named voices (Indigenous voices at their direction), and any court win banked.

Work several audiences at once — including the market. Local and national press build political pressure; the movement amplifies; and — distinctively in Canada — the project's **customers, banks, and insurers** can be reached directly, as the Clayoquot campaign reached MacMillan Bloedel's buyers. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — follow the affected nation's lead on what is shared, and get legal advice before any direct action.

EMAILS & LETTERS

Make them your own; keep them short, exact, and calm; keep a copy of everything.

8A — Access-to-information request (to the agency / province).

Subject: Access to information request — [project] assessment, approval, and consultation record.

"Under the [federal/provincial] access-to-information law, we, residents of [place], request the impact assessment, the approval and conditions, the permits, and the consultation record for [project] at [location]. Please provide these within the statutory time, or state the ground for any exemption. [Contact.]"

8B — Comment in the impact assessment.

Subject: Comment on the assessment of [project].

"We, residents of [place], submit that [project] will [harm the salmon river / the species / the water], and that the assessment fails to address [specifics] and the impacts on the rights of [the affected nation]. We ask that these be assessed and the project refused or properly conditioned. [Attach evidence.]"

8C — Supporting a duty-to-consult position (in support of and at the direction of the affected nation).

Subject: Support for [Nation] regarding [project].

"We write in support of [the affected nation] and their concerns that the Crown's duty to consult and accommodate has not been met in respect of [project]. We offer [documentation / logistical / public] support at their direction. [Contact.]"

8D — To Ecojustice / a public-interest lawyer.

Subject: Request for legal help — [project] at [location].

"Our community faces [project], which threatens [our water / a forest / Indigenous rights]. We've gathered [the assessment, the approval, the consultation record, photographs, testimony] and believe there are grounds for judicial review. We ask for your advice and, if warranted, representation, and we're ready to work as partners. [Contact and evidence summary.]"

8E — To a customer, bank, or insurer.

Subject: Environmental and reputational risk in [project].

"We understand your company may be [buying from / financing / insuring] [project] at [location], which [destroys old-growth forest / harms a salmon river / faces Indigenous opposition and active legal challenge]. We ask you to weigh this against your own environmental commitments, and we can provide documentation. [Contact.]"

8F — To the assessment agency (participant funding / process).

Subject: Request regarding participation in the assessment of [project].

"We, [group], wish to participate in the assessment of [project] and request [participant funding / information on the comment periods and how to take part]. [Contact.]"

8G — Letter to the press.

Subject: [Community] moves to protect [forest / river / land] from [project].

"For generations the people of [place] have lived from [the forest / the river] at [location], in the territory of [the affected nation]. Now [project], by [company], threatens to [clear / drain / destroy] it. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our forest / our river / this territory]. Canadians stopped the clearcut of Clayoquot Sound with people in the road and pressure on the market — and the duty to consult has quashed major approvals since. With the affected nation's leadership, the courts, the market, and the movement behind us, we have a real chance. Please join us: sign, share what you know, and stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and its footprint, and whose territory it's in.** Lay it over Indigenous and treaty land, protected areas, species, and water. Where Indigenous rights are engaged, that's the strongest lever — engage respectfully and early.
2. **Find which assessment applies and its comment periods (and participant funding).** Comment to push for full assessment and put your evidence on the record (8B).
3. **Request the documents, including the consultation record (8A).** That record is often the decisive one.
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most and cost nothing.
5. **Get help from Ecojustice or a public-interest lawyer fast (8D).** Judicial review has short deadlines.
6. **Go public — and go to the market (8G/8E).** The press, the movement, and pressure on customers and financiers are what won Clayoquot.

Even lean, those six use your rights, build the record, protect the deadlines, and start a coalition — the ground everything else builds on.

WHEN THE SYSTEM IS TILTED

Canada's tools are real, but the field is often tilted, and you must plan for it.

When the province wants the project built. The province is usually both the assessor and the champion, and it can fast-track "priority" projects. Don't fold: look for a federal trigger and, above all, for engaged Indigenous rights; use judicial review; keep the movement and the market fronts alive; and make the province's backing of a flawed project a political cost.

When federal and provincial powers tangle. The reach of federal assessment has been trimmed, so don't assume the federal lever is available — check, and fight on provincial ground if it isn't.

When consultation is treated as a box to tick. A thin, one-sided "consultation" is not a reason to disengage but a constitutional flaw that can quash an approval — support the affected nation in documenting exactly how it fell short.

When they fast-track or injunct. Governments increasingly fast-track, and courts issue injunctions against blockades that carry arrest and contempt. Get legal advice, keep direct action lawful and disciplined, and remember the deeper Clayoquot lesson: the market and the public mind moved a giant that the law alone could not.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Canada is, by global standards, well-governed — but resource politics, lobbying, and donations can bend a decision, and where they do, you expose it.

How to spot it. Approvals against the evidence or the agency's own advice; a process rushed or fast-tracked to suit a project; revolving doors between industry and government; political donations from the proponent; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The federal and provincial **auditors general** dig into public money and deals. The **ethics and lobbying commissioners** oversee conflicts and influence. The **courts** can

review an improper decision. And Canada's **investigative press** has repeatedly exposed captured approvals.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the public interest required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the proper watchdogs and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign, so the impropriety and the pressure land together.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents build your proof; understanding whose rights and which assessment aims it; organizing builds the muscle; the courts and the duty to consult press the case; the market and media raise the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, and whose territory it's in; find which assessment applies and its comment periods; request the documents and the consultation record; comment *in the windows* and apply for participant funding; support the affected nation's leadership; get Ecojustice; build your core group.

In the thick of it (months–years): support a duty-to-consult or assessment challenge by judicial review; deepen the coalition and the expert critique; open the market and media fronts.

The long haul (years): carry the case through appeals; keep the movement, the market, and the public campaign alive; hold the line for an approval quashed, real conditions, delay, or an outright stop.

FINAL ASSESSMENT

Stopping a destructive project in Canada can absolutely be done — a movement with no money saved an ancient rainforest by combining people in the road with pressure on the market, and the courts have since quashed major pipeline approvals over inadequate consultation. Hold both truths. Canada's tools are real and, in one respect, unusually strong: a constitutional duty to consult and accommodate Indigenous peoples that has stopped major projects; two levels of impact assessment with public comment and participant funding; independent courts that quash unlawful approvals; and a free press, a deep movement, and a market lever that can strand a project. And the constraints are real: the duty to consult is not a veto, jurisdiction tangles, provinces champion their projects, and governments fast-track and injunct.

Here's the discipline that wins. Understand whose territory the project is in and support that leadership first. Find which assessment applies and put your evidence and its flaws on the record. Pry loose the consultation record. Seek judicial review of an approval built on thin consultation or a flawed assessment. Take the fight to the market, the customers, and the public. Get Ecojustice beside you early. Brace for a long fight, and count an approval quashed or conditioned, delay, and exposure as wins alongside a clean stop. That's what Clayoquot did — Indigenous leadership, people in the road, and pressure on the market together — and they saved a rainforest. So can you.